TITLE 32—NATIONAL DEFENSE

Chapter V—Department of the Army

Subchapter F—Personnel

PART 578—DECORATIONS, MEDALS, RIBBONS, AND SIMILAR DEVICES

APPLICATIONS FOR BRONZE STAR MEDAL

Section 578.2 (k) (5) is amended to read as follows:

§ 578.2 *To whom decorations awarded.* * * *

(k) *Bronze Star Medal.* * * *

(5) *Application for award.* Members of the Armed Forces of the United States, who have been awarded the Combat Infantryman Badge or Medical Badge by competent authority, or whose meritorious achievement or exemplary conduct in ground combat against the armed enemy at any time from December 7, 1941, through September 3, 1945, is otherwise confirmed in writing, may make application to The Adjutant General, Washington 25, D. C., for award of the Bronze Star Medal.

[C15, AR 600–45, Oct. 13, 1949] (40 Stat. 871, 41 Stat. 398, 56 Stat. 1052; 10 U. S. C. 1412)

[SEAL] EDWARD F. WITSELL,
Major General,
The Adjutant General.

[F. R. Doc. 49–8563; Filed, Oct. 25, 1949; 8:48 a. m.]

TITLE 33—NAVIGATION AND NAVIGABLE WATERS

Chapter I—Coast Guard, Department of the Treasury

Subchapter D—Navigation Requirements for Certain Inland Waters

[CGFR 49–39]

PART 80—PILOT RULES FOR INLAND WATERS

SPECIAL DAY OR NIGHT SIGNALS

A notice regarding proposed changes in the inspection and navigation regulations was published in the FEDERAL REGISTER dated August 23, 1949 (14 F. R. 5230), and a public hearing was held by the Merchant Marine Council on September 27, 1949, at Washington, D. C.

The purpose of the amendments to the Pilot Rules is to add a new § 80.32a which will prescribe a day signal to be exhibited by fishing vessels or boats when operating on inland waters with nets, lines, or trawls out. This new regulation is based on a petition submitted to the Coast Guard. The new regulation will require the same day marks for fishing vessels as presently required by Article 9 (k) of the International Rules (33 U. S. C. 79 (k)).

By virtue of the authority vested in me as Commandant, United States Coast Guard, by section 2, 30 Stat. 102, as amended; 33 U. S. C. 157, the following amendments to the regulations are prescribed, which shall become effective ninety (90) days after date of publication of this document in the FEDERAL REGISTER:

1. Part 80 is amended by adding a new center heading and § 80.32a which shall immediately follow § 80.32, reading as follows:

SPECIAL DAY OR NIGHT SIGNALS

§ 80.32a *Day marks for fishing vessels with gear out.* All vessels or boats fishing with nets or lines or trawls, when under way, shall in daytime indicate their occupation to an approaching vessel by displaying a basket where it can best be seen. If vessels or boats at anchor have their gear out, they shall, on the approach of other vessels, show the same signal in the direction from the anchor back towards the nets or gear.

2. Part 80 is amended by deleting the center heading "Signals, Day or Night, at Anchor, or Under Way, United States Coast and Geodetic Survey Vessels" which immediately precedes § 80.33.

(Sec. 2, 30 Stat. 102, as amended; 33 U. S. C. 157)

Dated: October 20, 1949.

[SEAL] MERLIN O'NEILL,
Rear Admiral, U. S. Coast Guard,
Acting Commandant.

[F. R. Doc. 49–8570; Filed, Oct. 25, 1949; 8:57 a. m.]

TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

PART 297—EXECUTIVE ORDERS AND RELATED PUBLIC LAND ORDERS REFERRED TO IN THIS CHAPTER

WITHDRAWAL OF LANDS CONTAINING HOT OR MEDICINAL SPRINGS

CROSS REFERENCE: For amendment of Public Land Order 399, which amended Executive Order 5389, see Public Land Order 614, *infra*. Executive Order 5389 is codified in part as § 297.9.

Appendix—Public Land Orders

[Public Land Order 614]

UNITED STATES AND ALASKA

AMENDMENT OF PUBLIC LAND ORDER 399, REVOKING E. O. 1324½, AND AMENDING E. O. 5389 WITHDRAWING PUBLIC LANDS CONTAINING HOT OR MEDICINAL SPRINGS

By virtue of the authority contained in section 1 of the act of June 25, 1910, c. 421, 36 Stat. 847 (43 U. S. C. 141), and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

The last sentence of the second paragraph of Public Land Order No. 399, of August 20, 1947, which revoked Executive Order No. 1324½, of March 28, 1911, and amended Executive Order No. 5389 of July 7, 1930, withdrawing certain public lands containing hot or medicinal springs, is hereby amended to read as follows:

Executive Order No. 5389 as hereby amended shall not affect lands in national forests, nor shall lands now outside of, or hereafter eliminated from, national forests be subject to the provisions of such order by reason of their proximity to any such springs in a national forest.

OSCAR L. CHAPMAN,
Acting Secretary of the Interior.

OCTOBER 19, 1949.

[F. R. Doc. 49–8546; Filed, Oct. 25, 1949; 8:46 a. m.]

TITLE 49—TRANSPORTATION

Chapter I—Interstate Commerce Commission

[S. O. 843]

PART 95—CAR SERVICE

RESTRICTIONS ON COAL-BURNING PASSENGER SERVICE LOCOMOTIVE MILEAGE

At a session of the Interstate Commerce Commission, Division 3, held at its office in Washington, D. C., on the 21st day of October A. D. 1949.

It appearing, that reserve stocks of railroad locomotive fuel coal have decreased; that some such reserves have reached a dangerously low level and are further decreasing; that the supply and movement of cars and trains and "car service" generally is impeded and interrupted by the lack of locomotive fuel coal; that the present production of bituminous coal is insufficient to relieve these conditions and adequately supply such fuel, and the Commission being of the opinion that an emergency exists requiring immediate action in all sections of the country: It is ordered, that:

§ 95.843 *Restrictions on coal-burning passenger service locomotive mileage*—(a) *Reduction in passenger locomotive mileage.* On and after the effective date of this order, any common carrier by railroad operating coal-burning steam locomotives and having 25 or less days supply of fuel coal for such locomotives and not having available a dependable source of supply of coal, shall reduce its coal-burning passenger locomotives miles to an amount of 25% less than it operated such coal-burning passenger locomotives on October 1, 1949.

(b) *Application.* (1) The provisions of this section shall apply to intrastate commerce, as well as interstate and foreign commerce.

(2) The provisions of this section shall apply to coal-burning passenger locomotive operation commencing on and after the effective date hereof.

(c) *Effective date.* This section shall become effective at 11:59 p. m., October 25, 1949.

(d) *Expiration date.* This section shall continue in effect until 11:59 p. m., December 25, 1949, unless otherwise modified, changed, suspended or annulled by order of the Commission.

(e) *Rules, regulations, and practices suspended.* The operation of all rules, regulations, and practices insofar as they conflict with the provisions of this section, is hereby suspended.

It is further ordered, that a copy of this order shall be served upon the State railroad regulatory bodies of each State, and upon the Association of American Railroads, Car Service Division, as agent of the railroads subscribing to the car